

PART – II

SUSPENSION

4. **Authorities competent to place a Railway servant under suspension** - The classes of Railway servants who may be placed under suspension and the authorities by whom they may be so placed, shall be as specified in Schedules I, II and III:

Provided that, in exceptional circumstances, any authority specified in any of the Schedules may place any subordinate Railway servant specified therein, under suspension:

Provided further that where any action is taken under the foregoing proviso, the authority concerned shall forthwith report to the authority competent to place such Railway servant under suspension, the circumstances in which the order was made and obtain his approval.

Explanation - For the purposes of this rule, in respect of a Railway servant officiating in a higher post, the competent authority shall be determined with reference to the officiating post held by such Railway servant at the time of taking action.

5. **Suspension** -

(1) A Railway servant may be placed under suspension -

- (a) where a disciplinary proceeding against him is contemplated or is pending; or
- (b) where, in the opinion of the authority competent to place a Railway servant under suspension, he has engaged himself in activities prejudicial to the interest of the security of the state; or
- (c) where a case against him in respect of any criminal offence, is under investigation, inquiry or trial.

(2) A Railway servant shall be deemed to have been placed under suspension by an order of the competent authority -

- (a) with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding forty-eight hours;
- (b) with effect from the date of his conviction, if in the event of a conviction for an offence, he is sentenced to a term of imprisonment exceeding forty-eight hours and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

Explanation - The period of forty-eight hours referred to in clause (b) of this sub-rule, shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

(3) Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Railway servant under suspension, is set aside in appeal or on revision under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.